

PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY (HEGGSTAD)

TENTATIVE RULING: The matter is CONTINUED to August 27, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the following issue.

The Notice of Hearing does not comply with the provisions of Probate Code section 851, subdivision (c) in that it does not provide “[a] description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property.” (subd. (c)(1); see Notice of Hearing, § 3.) The Court is, therefore, concerned, that it does not enjoy jurisdiction over the matter. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“[t]he court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Lilley Leong et al v. Leo Leong et al

25CV001672

[1] DEMURRER TO 11TH, 12TH, AND 13TH CAUSES OF ACTION IN THE FIRST AMENDED COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED. Plaintiffs are granted 10 Court days’ leave, from the date of Notice of Entry of order of the Court’s ruling on Defendants Kenneth Leong and Mimi Leong’s Special Motion To Strike First Amended Complaint, to further amend the operative complaint. Such leave, however, is limited to allegations aimed at stating good claims against Khin Kyi Leong for abuse of process and/or defamation. Should Plaintiffs seek leave to amend to attempt to plead around the bar to their malicious prosecution claim (discussed below), they must request oral argument, pursuant to Local Rule 2.9, and provide the Court with an explanation for how they can so-amend.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Leo Leong and Khin Kyi Leong (Demurring Defendants) demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), to the Eleventh, Twelfth, and Thirteenth causes of action in the First Amended Complaint (FAC) filed by Plaintiffs Lilley Leong and Anthony Mazy on grounds that the FAC fails to allege facts sufficient to state the subject claims and that the allegations are fatally uncertain as to the subject claims.